

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 876

BY APPROPRIATIONS COMMITTEE

AN ACT

RELATING TO APPROPRIATIONS TO THE STATE BOARD OF EDUCATION FOR FISCAL YEAR 2027; APPROPRIATING MONEYS TO THE AGRICULTURAL RESEARCH AND EXTENSION SERVICE, THE STATE BOARD OF EDUCATION AND THE BOARD OF REGENTS OF THE UNIVERSITY OF IDAHO FOR COLLEGE AND UNIVERSITIES, THE STATE BOARD OF EDUCATION FOR COMMUNITY COLLEGES, THE OFFICE OF THE STATE BOARD OF EDUCATION, THE STATE BOARD OF EDUCATION AND THE BOARD OF REGENTS OF THE UNIVERSITY OF IDAHO FOR HEALTH EDUCATION PROGRAMS, THE DIVISION OF CAREER TECHNICAL EDUCATION, IDAHO PUBLIC TELEVISION, THE STATE BOARD OF EDUCATION AND THE BOARD OF REGENTS OF THE UNIVERSITY OF IDAHO FOR SPECIAL PROGRAMS, THE DEPARTMENT OF EDUCATION, THE DIVISION OF VOCATIONAL REHABILITATION, AND THE CHARTER SCHOOL COMMISSION FOR FISCAL YEAR 2027; LIMITING THE NUMBER OF AUTHORIZED FULL-TIME EQUIVALENT POSITIONS FOR CERTAIN PROGRAMS FOR FISCAL YEAR 2027; EXEMPTING THE APPROPRIATION FOR THE AGRICULTURAL RESEARCH AND EXTENSION SERVICE FROM EXPENSE CLASS TRANSFER LIMITATIONS; PROVIDING REAPPROPRIATION AUTHORITY FOR COLLEGE AND UNIVERSITIES; EXEMPTING THE APPROPRIATION FOR COLLEGE AND UNIVERSITIES FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS; PROVIDING REQUIREMENTS FOR SYSTEMWIDE NEEDS FOR COLLEGE AND UNIVERSITIES; DIRECTING AN ADJUSTMENT FOR STUDENT TUITION AND FEES FOR COLLEGE AND UNIVERSITIES FOR FISCAL YEAR 2027; PROVIDING A VOLUNTARY SEPARATION OPTION; EXEMPTING THE APPROPRIATION FOR COMMUNITY COLLEGES FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS; EXEMPTING THE APPROPRIATION FOR HEALTH EDUCATION PROGRAMS FROM EXPENSE CLASS TRANSFER LIMITATIONS; PROVIDING REAPPROPRIATION AUTHORITY FOR HEALTH EDUCATION PROGRAMS; DIRECTING AN ADJUSTMENT FOR STUDENT TUITION AND FEES FOR FISCAL YEAR 2027 FOR HEALTH EDUCATION PROGRAMS; EXEMPTING THE APPROPRIATION FOR POST-SECONDARY PROGRAMS FROM EXPENSE CLASS TRANSFER LIMITATIONS; PROVIDING FOR CONTINUOUS APPROPRIATION AUTHORITY FOR IDAHO PUBLIC TELEVISION; APPROPRIATING AND TRANSFERRING MONEYS FROM THE GENERAL FUND TO THE OPPORTUNITY SCHOLARSHIP PROGRAM ACCOUNT; PROVIDING REAPPROPRIATION AUTHORITY FOR THE IDAHO MILLENNIUM INCOME FUND; PROVIDING REAPPROPRIATION AUTHORITY FOR THE IDAHO CAREER READY STUDENTS PROGRAM FUND; DIRECTING THE USE OF FUNDS FOR STANDARDS REVIEW AND ADOPTION PROGRAMS; PROVIDING FOR DATA SHARING; PROVIDING FOR ACCOUNTABILITY REPORTS; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. There is hereby appropriated to the State Board of Education the following amounts to be expended according to the designated programs and expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
3					
4					
5	I. AGRICULTURAL RESEARCH & EXTENSION SERVICE:				
6	FROM:				
7	General				
8	Fund	\$34,260,400	\$3,752,900	\$650,000	\$38,663,300
9	II. COLLEGE AND UNIVERSITIES:				
10	A. BOISE STATE UNIVERSITY:				
11	FROM:				
12	General				
13	Fund	\$120,957,500	\$7,123,000	\$3,441,400	\$131,521,900
14	Unrestricted				
15	Fund	<u>124,742,500</u>	<u>49,314,700</u>	<u>2,000,000</u>	<u>176,057,200</u>
16	TOTAL	\$245,700,000	\$56,437,700	\$5,441,400	\$307,579,100
17	B. IDAHO STATE UNIVERSITY:				
18	FROM:				
19	General				
20	Fund	\$99,201,600	\$2,228,000	\$27,700	\$101,457,300
21	Charitable Institutions Endowment Income				
22	Fund	2,050,500			2,050,500
23	Normal School Endowment Income				
24	Fund	3,987,300			3,987,300
25	Unrestricted				
26	Fund	<u>38,199,200</u>	<u>26,735,700</u>	<u>4,074,800</u>	<u>69,009,700</u>
27	TOTAL	\$143,438,600	\$28,963,700	\$4,102,500	\$176,504,800
28	C. LEWIS-CLARK STATE COLLEGE:				
29	FROM:				
30	General				
31	Fund	\$20,350,700	\$2,550,300	\$425,300	\$23,326,300
32	Normal School Endowment Income				
33	Fund		3,891,600		3,891,600
34	Unrestricted				
35	Fund	<u>15,032,500</u>	<u>2,150,200</u>	<u>23,800</u>	<u>17,206,500</u>
36	TOTAL	\$35,383,200	\$8,592,100	\$449,100	\$44,424,400

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
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4					
5	D. UNIVERSITY OF IDAHO:				
6	FROM:				
7	General				
8	Fund	\$101,679,300	\$6,817,000	\$3,386,800	\$111,883,100
9	Agricultural College Endowment Income				
10	Fund	940,100	915,400	246,900	2,102,400
11	Scientific School Endowment Income				
12	Fund	3,468,500	3,616,300		7,084,800
13	University Endowment Income				
14	Fund		5,894,200	680,600	6,574,800
15	Unrestricted				
16	Fund	<u>55,507,800</u>	<u>25,085,500</u>	<u>101,600</u>	<u>80,694,900</u>
17	TOTAL	\$161,595,700	\$42,328,400	\$4,415,900	\$208,340,000
18	E. SYSTEMWIDE PROGRAMS:				
19	FROM:				
20	General				
21	Fund	\$283,800	\$3,155,000	\$3,695,100	\$7,133,900
22	DIVISION				
23	TOTAL	\$586,401,300	\$139,476,900	\$14,408,900	\$743,982,200
24	III. COMMUNITY COLLEGES:				
25	A. COLLEGE OF EASTERN IDAHO:				
26	FROM:				
27	General				
28	Fund	\$8,049,700	\$26,700		\$8,076,400
29	Community College				
30	Fund	<u>200,000</u>	<u>0</u>		<u>200,000</u>
31	TOTAL	\$8,249,700	\$26,700		\$8,276,400
32	B. COLLEGE OF SOUTHERN IDAHO:				
33	FROM:				
34	General				
35	Fund	\$18,881,000	\$1,621,300		\$20,502,300

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
Community College					
Fund	<u>0</u>	<u>200,000</u>			<u>200,000</u>
TOTAL	\$18,881,000	\$1,821,300			\$20,702,300
C. COLLEGE OF WESTERN IDAHO:					
FROM:					
General					
Fund	\$19,599,800	\$2,332,000			\$21,931,800
Community College					
Fund	<u>0</u>	<u>200,000</u>			<u>200,000</u>
TOTAL	\$19,599,800	\$2,532,000			\$22,131,800
D. NORTH IDAHO COLLEGE:					
FROM:					
General					
Fund	\$13,821,600	\$1,876,800			\$15,698,400
Community College					
Fund	<u>0</u>	<u>175,000</u>	<u>\$25,000</u>		<u>200,000</u>
TOTAL	\$13,821,600	\$2,051,800	\$25,000		\$15,898,400
E. CC SYSTEMWIDE:					
FROM:					
General					
Fund		\$37,200			\$37,200
DIVISION					
TOTAL	\$60,552,100	\$6,469,000	\$25,000		\$67,046,100
IV. OFFICE OF THE STATE BOARD OF EDUCATION:					
A. OSBE ADMINISTRATION:					
FROM:					
General					
Fund	\$5,743,900	\$2,192,500			\$7,936,400
Indirect Cost Recovery					
Fund	40,900	83,900			124,800
In-Demand Careers					
Fund	282,400	12,000			294,400

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
Miscellaneous Revenue					
Fund	<u>176,300</u>	<u>168,300</u>	<u>\$6,125,000</u>	<u>\$100,000</u>	<u>6,569,600</u>
TOTAL	\$6,243,500	\$2,456,700	\$6,125,000	\$100,000	\$14,925,200
B. IT AND DATA MANAGEMENT:					
FROM:					
General					
Fund	\$3,543,100	\$1,109,500		\$3,430,000	\$8,082,600
Broadband Infrastructure					
Fund				1,274,000	1,274,000
Public Instruction					
Fund	<u>0</u>	<u>15,000</u>		<u>0</u>	<u>15,000</u>
TOTAL	\$3,543,100	\$1,124,500		\$4,704,000	\$9,371,600
C. SCHOOL SAFETY AND SECURITY PROGRAM:					
FROM:					
General					
Fund	\$591,700	\$152,200			\$743,900
Miscellaneous Revenue/School Security Assessment					
Fund	<u>300,900</u>	<u>66,000</u>			<u>366,900</u>
TOTAL	\$892,600	\$218,200			\$1,110,800
DIVISION					
TOTAL	\$10,679,200	\$3,799,400	\$6,125,000	\$4,804,000	\$25,407,600
V. HEALTH EDUCATION PROGRAMS:					
A. BOISE INTERNAL MEDICINE:					
FROM:					
General					
Fund				\$1,252,300	\$1,252,300
B. EASTERN IDAHO MED RESIDENCIES:					
FROM:					
General					
Fund				\$3,147,600	\$3,147,600

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
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3					
4					
5	C. FAMILY MEDICINE RESIDENCIES:				
6	FROM:				
7	General				
8	Fund	\$3,017,900	\$222,900	\$4,733,600	\$7,974,400
9	D. IDAHO DENTAL EDUCATION PROGRAM:				
10	FROM:				
11	General				
12	Fund	\$216,100		\$1,811,200	\$2,027,300
13	Unrestricted				
14	Fund	<u>256,000</u>	<u>\$60,500</u>	<u>\$5,500</u>	<u>322,000</u>
15	TOTAL	\$472,100	\$60,500	\$1,811,200	\$2,349,300
16	E. PSYCHIATRY EDUCATION:				
17	FROM:				
18	General				
19	Fund			\$812,700	\$812,700
20	F. UNIVERSITY OF UTAH MEDICAL EDUCATION:				
21	FROM:				
22	General				
23	Fund			\$3,148,800	\$3,148,800
24	G. WIMU VETERINARY EDUCATION:				
25	FROM:				
26	General				
27	Fund	\$742,100	\$2,020,600		\$2,762,700
28	Restricted				
29	Fund	<u>0</u>	<u>0</u>	<u>\$100,000</u>	<u>100,000</u>
30	TOTAL	\$742,100	\$2,020,600	\$100,000	\$2,862,700

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
3					
4					
5	H. WWAMI MEDICAL EDUCATION:				
6	FROM:				
7	General				
8	Fund	\$1,690,200	\$347,800	\$5,737,100	\$7,775,100
9	DIVISION				
10	TOTAL	\$5,922,300	\$2,651,800	\$5,500	\$20,743,300
					\$29,322,900
11	VI. DIVISION OF CAREER TECHNICAL EDUCATION:				
12	A. CTE ADMINISTRATION:				
13	FROM:				
14	General				
15	Fund	\$2,328,800	\$618,300		\$2,947,100
16	Federal Grant				
17	Fund	<u>0</u>	<u>20,000</u>		<u>20,000</u>
18	TOTAL	\$2,328,800	\$638,300		\$2,967,100
19	B. SECONDARY AND GENERAL PROGRAMS:				
20	FROM:				
21	General				
22	Fund	\$1,320,000	\$239,200	\$14,110,300	\$15,669,500
23	In-Demand Careers				
24	Fund			5,000,000	5,000,000
25	Miscellaneous Revenue				
26	Fund		25,000		25,000
27	Federal Grant				
28	Fund	<u>833,300</u>	<u>277,800</u>	<u>3,345,800</u>	<u>4,456,900</u>
29	TOTAL	\$2,153,300	\$542,000	\$22,456,100	\$25,151,400
30	C. POSTSECONDARY PROGRAMS:				
31	FROM:				
32	General				
33	Fund	\$51,319,000	\$5,044,300	\$9,120,300	\$65,483,600
34	Federal Grant				
35	Fund	<u>0</u>	<u>0</u>	<u>4,368,400</u>	<u>4,368,400</u>
36	TOTAL	\$51,319,000	\$5,044,300	\$13,488,700	\$69,852,000

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
D. EDUCATOR SERVICES PROGRAM:					
FROM:					
General					
Fund	\$811,400	\$194,100		\$661,200	\$1,666,700
Miscellaneous Revenue					
Fund	<u>0</u>	<u>275,000</u>		<u>0</u>	<u>275,000</u>
TOTAL	\$811,400	\$469,100		\$661,200	\$1,941,700
E. RELATED PROGRAMS:					
FROM:					
General					
Fund	\$936,400	\$167,500		\$2,027,300	\$3,131,200
Displaced Homemaker					
Fund				170,000	170,000
Hazardous Materials/Waste Enforcement					
Fund				67,800	67,800
Miscellaneous Revenue					
Fund		15,000			15,000
Federal Grant					
Fund	<u>250,200</u>	<u>94,300</u>		<u>3,067,900</u>	<u>3,412,400</u>
TOTAL	\$1,186,600	\$276,800		\$5,333,000	\$6,796,400
DIVISION					
TOTAL	\$57,799,100	\$6,970,500		\$41,939,000	\$106,708,600
VII. IDAHO PUBLIC TELEVISION:					
FROM:					
General					
Fund	\$1,680,200	\$990,900	\$300,900		\$2,972,000
Idaho Millennium Income					
Fund	<u>207,000</u>	<u>800,000</u>	<u>0</u>		<u>1,007,000</u>
TOTAL	\$1,887,200	\$1,790,900	\$300,900		\$3,979,000

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
VIII. SPECIAL PROGRAMS:					
A. FOREST UTILIZATION RESEARCH:					
FROM:					
General					
Fund	\$1,502,300	\$160,600			\$1,662,900
B. GEOLOGICAL SURVEY:					
FROM:					
General					
Fund	\$1,355,800	\$700			\$1,356,500
C. MUSEUM OF NATURAL HISTORY:					
FROM:					
General					
Fund	\$763,900	\$3,300			\$767,200
D. SCHOLARSHIPS AND GRANTS:					
FROM:					
General					
Fund	\$113,000			\$24,898,000	\$25,011,000
US Dept of Education Gearup Scholarship					
Fund	<u>25,400</u>	<u>\$1,000</u>		<u>4,504,600</u>	<u>4,531,000</u>
TOTAL	\$138,400	\$1,000		\$29,402,600	\$29,542,000
E. SMALL BUSINESS DEVELOPMENT CENTERS:					
FROM:					
General					
Fund	\$907,800				\$907,800
American Rescue Plan					
Fund	<u>112,700</u>	<u>\$110,200</u>			<u>222,900</u>
TOTAL	\$1,020,500	\$110,200			\$1,130,700

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1 F. TECHHELP:					
2 FROM:					
3 General					
4 Fund	\$444,500				\$444,500
5 DIVISION					
6 TOTAL	\$5,225,400	\$275,800		\$29,402,600	\$34,903,800
7					
8 IX. DEPARTMENT OF EDUCATION:					
9 A. ADMINISTRATION:					
10 FROM:					
11 General					
12 Fund	\$3,215,000	\$828,000			\$4,043,000
13 Indirect Cost Recovery					
14 Fund	837,000	157,200			994,200
15 Public Instruction					
16 Fund	606,800	231,400			838,200
17 Federal Grant					
18 Fund	<u>0</u>	<u>96,000</u>			<u>96,000</u>
19 TOTAL	\$4,658,800	\$1,312,600			\$5,971,400
20					
21 B. STUDENT SERVICES:					
22 FROM:					
23 General					
24 Fund	\$3,161,900	\$4,143,800		\$269,600	\$7,575,300
25 Indirect Cost Recovery					
26 Fund	116,200	902,900			1,019,100
27 Driver's Training					
28 Fund	223,200	302,900		2,113,300	2,639,400
29 Public Instruction					
30 Fund	403,100	766,100		11,400	1,180,600
31 Miscellaneous Revenue					
32 Fund	388,800	187,700			576,500
33 Public Schools Other Income					
34 Fund	120,500	363,200			483,700
35 Cigarette, Tobacco and Lottery Income Taxes					
36 Fund	121,100				121,100

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
Idaho Millennium Income					
Fund	54,500			6,450,000	6,504,500
School Bus Camera					
Fund				6,800	6,800
Federal Grant					
Fund	<u>5,543,300</u>	<u>12,194,900</u>		<u>2,082,200</u>	<u>19,820,400</u>
TOTAL	\$10,132,600	\$18,861,500		\$10,933,300	\$39,927,400
DIVISION					
TOTAL	\$14,791,400	\$20,174,100		\$10,933,300	\$45,898,800
X. VOCATIONAL REHABILITATION:					
A. VOCATIONAL REHABILITATION:					
FROM:					
General					
Fund	\$2,664,800	\$318,700	\$55,500	\$1,604,100	\$4,643,100
Rehabilitation Revenue and Refunds					
Fund	1,600	619,600		540,000	1,161,200
Miscellaneous Revenue					
Fund	1,600	87,800		165,700	255,100
Federal Grant					
Fund	<u>10,643,200</u>	<u>1,430,600</u>	<u>349,100</u>	<u>7,729,700</u>	<u>20,152,600</u>
TOTAL	\$13,311,200	\$2,456,700	\$404,600	\$10,039,500	\$26,212,000
B. COUNCIL FOR THE DEAF AND HARD OF HEARING:					
FROM:					
General					
Fund	\$462,900	\$135,000			\$597,900
Miscellaneous Revenue					
Fund	<u>0</u>	<u>3,000</u>			<u>3,000</u>
TOTAL	\$462,900	\$138,000			\$600,900
DIVISION					
TOTAL	\$13,774,100	\$2,594,700	\$404,600	\$10,039,500	\$26,812,900

				FOR	
	FOR	FOR	FOR	TRUSTEE AND	
	PERSONNEL	OPERATING	CAPITAL	BENEFIT	
	COSTS	EXPENDITURES	OUTLAY	PAYMENTS	TOTAL
5	XI. CHARTER SCHOOL COMMISSION:				
6	FROM:				
7	General				
8	Fund	\$154,400	\$38,200		\$192,600
9	Public Charter School Authorizers				
10	Fund	<u>446,200</u>	<u>105,900</u>		<u>552,100</u>
11	TOTAL	\$600,600	\$144,100		\$744,700
12	GRAND TOTAL	\$791,893,100	\$188,100,100	\$21,919,900	\$121,556,800
					\$1,123,469,900

SECTION 2. FTP AUTHORIZATION FOR FISCAL YEAR 2027. In accordance with Section 67-3519, Idaho Code, the programs listed below in the State Board of Education are authorized no more than the following number of full-time equivalent positions at any point during the period July 1, 2026, through June 30, 2027, unless specifically authorized by the Governor. The Joint Finance-Appropriations Committee will be notified promptly of any increased positions so authorized. Full-time equivalent positions at the institutions of higher education and postsecondary programs in the Division of Career Technical Education are not limited.

22	Office of the State Board of Education	84.42
23	WIMU Veterinary Education	6.38
24	WWAMI Medical Education	11.03
25	Idaho Dental Education Program	3.25
26	Family Medicine Residencies	25.30
27	Division of Career Technical Education	58.00
28	Idaho Public Television	15.00
29	Forest Utilization Research	12.68
30	Geological Survey	12.43
31	Museum of Natural History	8.20
32	Scholarships and Grants	1.35
33	Small Business Development Centers	11.17
34	TechHelp	3.44
35	Department of Education	127.00
36	Division of Vocational Rehabilitation	144.37
37	Charter School Commission	5.00

SECTION 3. EXEMPTIONS FROM EXPENSE CLASS TRANSFER LIMITATIONS -- AGRICULTURAL RESEARCH AND EXTENSION SERVICE. The State Board of Education and the Board of Regents of the University of Idaho for the Agricultural Research and Extension Service are hereby exempted from the provisions of Section 67-3511(1) and (3), Idaho Code, allowing unlimited transfers between expense classes for all moneys appropriated to them for the period July

1 1, 2026, through June 30, 2027. Legislative appropriations shall not be
2 transferred from one fund to another fund unless expressly approved by the
3 Legislature.

4 SECTION 4. REAPPROPRIATION AUTHORITY FOR DEDICATED FUNDS -- COLLEGE
5 AND UNIVERSITIES. There is hereby reappropriated to the State Board of Ed-
6 ucation and the Board of Regents of the University of Idaho for College and
7 Universities and the Office of the State Board of Education any unexpended
8 and unencumbered balances appropriated or reappropriated to the State Board
9 of Education and the Board of Regents of the University of Idaho for College
10 and Universities from dedicated funds for fiscal year 2026, to be used for
11 nonrecurring expenditures for the period July 1, 2026, through June 30,
12 2027. The Office of the State Controller shall confirm the reappropriation
13 amount, by fund, expense class, and program, with the Legislative Services
14 Office prior to processing the reappropriation authorized herein.

15 SECTION 5. EXEMPTIONS FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITA-
16 TIONS -- COLLEGE AND UNIVERSITIES. The State Board of Education and the Board
17 of Regents of the University of Idaho for College and Universities and the
18 Office of the State Board of Education are hereby exempted from the provi-
19 sions of Section 67-3511(1), (2), and (3), Idaho Code, allowing unlimited
20 transfers between expense classes and between programs for all moneys appro-
21 priated to them for the period July 1, 2026, through June 30, 2027. Legisla-
22 tive appropriations shall not be transferred from one fund to another fund
23 unless expressly approved by the Legislature.

24 SECTION 6. SYSTEMWIDE NEEDS -- COLLEGE AND UNIVERSITIES. Of the amount
25 appropriated in Subsection II. E. of Section 1 of this act, the following
26 amounts may be used as follows:

27 (1) An amount not to exceed \$902,600 may be used by the Office of
28 the State Board of Education for systemwide needs that benefit all of the
29 four-year institutions, including but not limited to projects to promote
30 accountability and information transfer throughout the higher education
31 system; and

32 (2) An amount of approximately \$1,960,500 may be used for the mission
33 and goals of the Higher Education Research Council as outlined in State
34 Board of Education Policy III.W., which includes awards for infrastructure,
35 matching grants, and competitive grants through the Idaho Incubation Fund
36 program.

37 SECTION 7. STUDENT TUITION AND FEES FOR FISCAL YEAR 2027 -- COLLEGE AND
38 UNIVERSITIES. Notwithstanding the provisions of Section 67-3516(2), Idaho
39 Code, the Division of Financial Management may approve the expenditure of
40 dedicated state funds pursuant to the noncognizable process for student tu-
41 tion and fees during fiscal year 2027 for College and Universities. Each of
42 the institutions' budget requests for fiscal year 2028 shall reflect all ad-
43 justments so approved by the Division of Financial Management.

44 SECTION 8. VOLUNTARY SEPARATION OPTION -- COLLEGE AND UNIVERSITIES.
45 Notwithstanding the provisions of Section 67-5342, Idaho Code, or any other

1 provision of law, the college and universities may, at the discretion of the
2 college or university president, employ a voluntary separation incentive
3 plan as part of an overall financial and budget management strategy. Such
4 voluntary separation incentive plans shall not be considered severance for
5 the purposes of Section 67-5342, Idaho Code.

6 SECTION 9. EXEMPTIONS FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITA-
7 TIONS -- COMMUNITY COLLEGES. The State Board of Education for Community Col-
8 leges is hereby exempted from the provisions of Section 67-3511(1), (2), and
9 (3), Idaho Code, allowing unlimited transfers between expense classes and
10 between programs for all moneys appropriated to it for the period July 1,
11 2026, through June 30, 2027. Legislative appropriations shall not be trans-
12 ferred from one fund to another fund unless expressly approved by the Legis-
13 lature.

14 SECTION 10. EXEMPTIONS FROM EXPENSE CLASS TRANSFER LIMITATIONS --
15 HEALTH EDUCATION PROGRAMS. The State Board of Education and the Board of
16 Regents of the University of Idaho for Health Education Programs are hereby
17 exempted from the provisions of Section 67-3511(1) and (3), Idaho Code,
18 allowing unlimited transfers between expense classes for dedicated fund
19 moneys appropriated for the period July 1, 2026, through June 30, 2027. Leg-
20 islative appropriations shall not be transferred from one fund to another
21 fund unless expressly approved by the Legislature.

22 SECTION 11. REAPPROPRIATION AUTHORITY FOR DEDICATED FUNDS -- HEALTH
23 EDUCATION PROGRAMS. There is hereby reappropriated to the State Board of
24 Education and the Board of Regents of the University of Idaho for Health Ed-
25 ucation Programs any unexpended and unencumbered balances appropriated or
26 reappropriated to the State Board of Education and the Board of Regents of
27 the University of Idaho for Health Education Programs from dedicated funds
28 for fiscal year 2026 to be used for nonrecurring expenditures for the period
29 July 1, 2026, through June 30, 2027. The Office of the State Controller shall
30 confirm the reappropriation amount, by fund, expense class, and program,
31 with the Legislative Services Office prior to processing the reappropria-
32 tion authorized herein.

33 SECTION 12. STUDENT TUITION AND FEES FOR FISCAL YEAR 2027 -- HEALTH
34 EDUCATION PROGRAMS. Notwithstanding the provisions of Section 67-3516(2),
35 Idaho Code, the Division of Financial Management may approve the expenditure
36 of dedicated state funds pursuant to the noncognizable process for student
37 tuition and fees during fiscal year 2027 for Health Education Programs. Each
38 of the programs' budget requests for fiscal year 2028 shall reflect all ad-
39 justments so approved by the Division of Financial Management.

40 SECTION 13. EXEMPTIONS FROM EXPENSE CLASS TRANSFER LIMITATIONS -- DI-
41 VISION OF CAREER TECHNICAL EDUCATION. Postsecondary Programs within the Di-
42 vision of Career Technical Education is hereby exempted from the provisions
43 of Section 67-3511(1) and (3), Idaho Code, allowing unlimited transfers
44 between expense classes for all moneys appropriated to it for the period July
45 1, 2026, through June 30, 2027. Legislative appropriations shall not be

1 transferred from one fund to another fund unless expressly approved by the
2 Legislature.

3 SECTION 14. CONTINUOUS APPROPRIATION AUTHORITY -- IDAHO PUBLIC TELE-
4 VISION. Idaho Public Television is hereby granted continuous appropriation
5 authority for positions and funds from its Miscellaneous Revenue Fund for
6 the period July 1, 2026, through June 30, 2027, for the purpose of content
7 production and related services from revenue sources provided by private do-
8 nations.

9 SECTION 15. OPPORTUNITY SCHOLARSHIP PROGRAM ACCOUNT -- SPECIAL PRO-
10 GRAMS. Moneys appropriated from the General Fund to the Scholarships and
11 Grants Program for fiscal year 2026 that are unexpended and unencumbered on
12 June 30, 2026, are hereby appropriated and shall be transferred by the Office
13 of the State Controller to the Opportunity Scholarship Program Account cre-
14 ated in Section 33-4303, Idaho Code.

15 SECTION 16. REAPPROPRIATION AUTHORITY FOR THE IDAHO MILLENNIUM INCOME
16 FUND -- DEPARTMENT OF EDUCATION. There is hereby reappropriated to the State
17 Department of Education any unexpended and unencumbered balances appropri-
18 ated or reappropriated to the State Department of Education from the Idaho
19 Millennium Income Fund for fiscal year 2026 to be used for nonrecurring ex-
20 penditures for the period July 1, 2026, through June 30, 2027. The Office of
21 the State Controller shall confirm the reappropriation amount, by fund, ex-
22 pense class, and program, with the Legislative Services Office prior to pro-
23 cessing the reappropriation authorized herein.

24 SECTION 17. REAPPROPRIATION AUTHORITY FOR THE IDAHO CAREER READY STU-
25 DENTS PROGRAM FUND -- DEPARTMENT OF EDUCATION. There is hereby reappropri-
26 ated to the State Department of Education any unexpended and unencumbered
27 balances appropriated or reappropriated to the State Department of Educa-
28 tion from the Idaho Career Ready Students Program Fund for fiscal year 2026,
29 in an amount not to exceed \$39,000,000, to be used for nonrecurring expendi-
30 tures related to the Idaho Career Ready Students Program for the period July
31 1, 2026, through June 30, 2027. The Office of the State Controller shall con-
32 firm the reappropriation amount, by fund, expense class, and program, with
33 the Legislative Services Office prior to processing the reappropriation au-
34 thorized herein.

35 SECTION 18. STANDARDS REVIEW AND ADOPTION PROGRAMS -- DEPARTMENT OF ED-
36 UCATION. Notwithstanding the provisions of Section 49-308, Idaho Code, and
37 any other provision of law to the contrary, of the amounts appropriated in
38 Section 1 of this act and any other appropriation provided by law from the
39 Driver's Training Fund, no more than \$150,000 shall be used for standards re-
40 view and adoption programs.

41 SECTION 19. DATA SHARING -- DEPARTMENT OF EDUCATION. The State Depart-
42 ment of Education and the Office of the State Board of Education shall part-
43 ner to provide a monthly data file to the Budget and Policy Analysis Division
44 of the Legislative Services Office using data stored in the Idaho System for

1 Educational Excellence. Each data file shall be provided no later than the
2 tenth day of each month in an electronic spreadsheet format that allows for
3 analysis, formulas, and report building. The final format and content of the
4 data file shall be determined by the Budget and Policy Analysis Division of
5 the Legislative Services Office. Data that could identify a student's spe-
6 cial status or that is protected for privacy concerns shall be omitted, and
7 an alternative data point should be provided when possible.

8 SECTION 20. ACCOUNTABILITY REPORTS. Funds specifically identified in
9 statute or in an appropriation act as intended for a certain purpose may
10 be used only for that purpose. Funds provided in this act are subject to
11 accountability reports and management reviews in accordance with Section
12 67-702, Idaho Code, provided the Legislative Services Office auditor has
13 sufficient resources to conduct those reports. State agencies that are
14 authorized to contract for outside audits shall submit those reports to the
15 Joint Finance-Appropriations Committee when those reports become avail-
16 able.

17 SECTION 21. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
18 made pursuant to this act are subject to the conditions, limitations, and re-
19 strictions specified in this act.

20 SECTION 22. An emergency existing therefor, which emergency is hereby
21 declared to exist, this act shall be in full force and effect on and after
22 July 1, 2026.